

24CV07082 Raymond Lance Stoll v. Jaguar Land Rover North America, LLC

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-29

Motion: Motions to Compel (2)

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Tentative Ruling: Raymond Lance Stoll v. Jaguar Land Rover North America, LLC

Case Number

24CV07082

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/29/2026 - 10:00

Nature of Proceedings

Motions to Compel (2)

Tentative Ruling

For Plaintiff Raymond Lance Stoll: Michelle Yang, Andres Quiroga Roldan, Prestige Legal Solutions P.C.

For Defendant Jaguar Land Rover North America LLC.: Matthew C. Wolf, Lauren K. Van Denburg, Rosario Stoliker, Turner Henningsen Wolf & Vandenburg LLP

RULING

Appearances are required.

For the reasons set forth herein:

Plaintiff Raymond Lance Stoll's motion to compel the deposition of Defendant's person most qualified, production of documents, and for monetary sanctions is granted in part and denied in part.

Defendant shall produce their person most qualified, for the categories set forth in the deposition notice, no later than July 31, 2026. Counsel for both parties are ordered to appear and be prepared to discuss a specific date and time for the deposition.

The motion for production of documents at deposition is taken off-calendar as premature, without prejudice for Plaintiff to bring the motion following the commencement of deposition.

No monetary sanctions are imposed against or in favor of any party.

Defendant Jaguar Land Rover North America LLC's motion to compel the deposition of Plaintiff is granted. Plaintiff shall present for deposition no later than July 31, 2026. Counsel for both parties are ordered to appear and be prepared to discuss a specific date and time for the deposition.

The Pretrial Conference at 11:30 am 8/19/26 and the Jury comes over 8/24/26 is confirmed.

Background

This action commenced on December 16, 2024, by the filing of the complaint by Plaintiff Raymond Lance Stoll against Jaguar Land Rover North America, LLC ("JLRNA") for violations of the Song-Beverly Consumer Warranty Act related to a 2018 Land Rover Range Rover.

Arguing that JLRNA has refused to produce its person most qualified ("PMQ") for deposition, pertaining to 66 categories of examination and production of documents, Plaintiff moves to compel production of a PMQ for all of the categories and production of documents requested in the notice.

JLRNA opposes the motion arguing that Plaintiff failed to meaningfully meet and confer, it has agreed to produce a PMQ, and Plaintiff's motion seeking to compel production of documents at the deposition is premature.

Arguing that Plaintiff has failed to appear for deposition, JLRNA moves to compel the deposition of Plaintiff.

Plaintiff opposes the motion arguing that JLRNA has failed to meaningfully meet and confer and that Plaintiff has provided his availability for deposition.

Analysis

Motion to Compel Depositions

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for

an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

"A trial Court must be mindful of the Legislature's preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery, may not use its discretion to extend the limits on discovery beyond those authorized by the Legislature, and should prefer partial to outright denials of discovery." (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

"Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.)

"(a) A party desiring to take the oral deposition of any person shall give notice in writing. The deposition notice shall state all of the following, in at least 12-point type:

"(1) The address where the deposition will be taken.

"(2) The date of the deposition, selected under Section 2025.270, and the time it will commence.

"(3) The name of each deponent, and the address and telephone number, if known, of any deponent who is not a party to the action. If the name of the deponent is not known, the deposition notice shall set forth instead a general description sufficient to identify the person or particular class to which the person belongs.

"(4) The specification with reasonable particularity of any materials or category of materials, including any electronically stored information, to be produced by the deponent.

"(5) Any intention by the party noticing the deposition to record the testimony by audio or video technology, in addition to recording the testimony by the stenographic method as required by Section 2025.330 and any intention to record the testimony by stenographic method through the instant visual display of the testimony. If the deposition will be conducted using instant visual display, a copy of the deposition notice shall also be given to the deposition officer. Any offer to provide the instant visual display of the testimony or to provide rough draft transcripts to any party which is accepted prior to, or offered at, the deposition shall also be made by the deposition officer at the deposition to all parties in attendance. Any party or attorney requesting the provision of the instant visual display of the testimony, or rough draft transcripts, shall pay the reasonable cost of those services, which may be no greater than the costs charged to any other party or attorney.

"(6) Any intention to reserve the right to use at trial a video recording of the deposition testimony of a treating or consulting physician or of an expert witness under subdivision (d) of Section 2025.620. In this event, the operator of the video camera shall be a person who is authorized to administer an oath, and shall not be financially interested in the action or be a relative or employee of any attorney of any of the parties.

"(7) The form in which any electronically stored information is to be produced, if a particular form is desired.

"(8)(A) A statement disclosing the existence of a contract, if any is known to the noticing party, between the noticing party or a third party who is financing all or part of the action and either of the following for any service beyond the noticed deposition:

"(i) The deposition officer.

“(ii) The entity providing the services of the deposition officer.

“(B) A statement disclosing that the party noticing the deposition, or a third party financing all or part of the action, directed his or her attorney to use a particular officer or entity to provide services for the deposition, if applicable.” (Code Civ. Proc., § 2025.220, subd. (a).)

“If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.” (Code Civ. Proc., § 2025.230.)

Both parties' notices fully comply with Code of Civil Procedure sections 2025.220 and 2025.230.

Neither party disputes that the other is entitled to the deposition that they seek. To the extent that each of the parties have offered dates for the depositions, they will be ordered to appear at the hearing for the selection of a specific date, or dates, for the depositions to take place.

Plaintiff's request that JLRNA's PMQ be ordered to provide responsive documents at the deposition is premature. If the PMQ fails or refuses to produce documents at deposition, the proper remedy is a motion pursuant to Code of Civil Procedure section 2025.480 following the commencement of the deposition. Likewise, any dispute regarding the categories of testimony is to be addressed following the commencement of the deposition should the PMQ refuse to respond to particular questions. Without the questions and answers, the Court would have nothing to base a ruling on. Having said that, the Court does agree with JLRNA that some of the categories, such as those seeking legal theories and reasoning, are impermissible. The Court will, in the first instance, allow the parties to attempt to cooperate in only seeking relevant and discoverable information.

Sanctions

“If a motion under subdivision (a) is granted, the Court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Neither party is blameless in these disputes and neither of these motions should have been necessary. Scheduling depositions, and producing deponents, is one of the most basic aspects of discovery

“Civil discovery is intended to operate with a minimum of judicial intervention. “ ‘[I]t is a ‘ “central precept” ’ of the Civil Discovery Act . . . that discovery ‘ “be essentially self-executing[.]” ’ ” [Citations.]” (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402.)

Given that the Court finds both parties at fault for the failure to resolve these simple, essentially calendaring, issues, the imposition of sanctions against one or the other party would be unjust under the circumstances. No sanctions will be imposed either for or against either party.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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